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NEWSPAPER

27th July, 2017

ITEM WISE EDITORIALS

30th WEEK



POLAND & EU

UPSC CSE – GS II

GS II... EFFECT OF POLICIES AND POLITICS OF DEVELOPING COUNTRIES ON INDIA'S INTERESTS.



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NEWSPAPER EDITORIALS

... DISCUSSION

27th JULY, 2017

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Poles apart

Executive overreach in Poland is drawing people to the streets, and inviting the EU's ire

Poland's right-wing government has been waging a relentless war on democratic institutions ever since it assumed office in 2015. But it may have gone too far now with its moves to curb judicial independence, which have been categorically opposed by President Andrzej Duda. Mr. Duda, an ally of the ruling Law and Justice Party (PiS), vetoed two measures that militate against the rule of law. One of them requires all judges of the Supreme Court to step down, except those the President thinks should stay on. The second gives Parliament control over the mechanism that deals with their appointment. However, he did assent to another controversial measure which empowers the justice minister to sack the heads of lower courts. The government of Prime Minister Beata Szydło was able to initiate these unpopular pieces of legislation because it has already stripped the tribunal that adjudicates on the constitutionality of laws relating to its powers. The government has claimed that the overhaul was intended to rid the judicial system of Soviet-era remnants. But most Poles seem to think otherwise. They have listed economic prosperity and political freedoms in the post-Gold-War years and after the country's 2004 accession to the European Union. They have also grown accustomed to standing up for their rights against arbitrary encroachment, and with success. The government was forced to reverse a socially regressive policy on abortion that even criminalised termination of pregnancies regardless of circumstances, including rape.

Outrage against the latest judicial reforms has drawn thousands to the streets in protest against the PiS regime. Poland has been the poster child of the EU's integration, and the institutional clampdown in this otherwise thriving economy is understandably causing concern in other European capitals. The European Commission has said it would start legal proceedings. Under the Rule of Law Framework, it can strip a member-country of its voting rights. But given the sensitivities about national sovereignty, there are bound to be limits on the application of procedures, even where they may be sound under the law. Moreover, Hungary's continued clash with the EU over similar issues seems to have made little difference to its dismal record on democratic governance and accountability. Experience suggests that leading by example and exerting diplomatic pressure, rather than preaching from the pulpit, is a more realistic and effective course to adopt. The art and craft of stitching up pragmatic, if sometimes painful, political compromises has been the story of the EU, where the imperatives of staying together trump almost all else. Poland's robust civil society may, in the end, be more effective in keeping its government accountable.

THE  HINDU

Date : 27th July, 2017



POLAND IS IN THE NEWS, WHEN ITS RIGHT WING GOVERNMENT MOVING TOWARDS CURBING JUDICIAL INDEPENDENCE.



- 1 The three measures proposed by the Poland Government are
 - All the judges of the Supreme Court to step down except those the President thinks should stay on.
 - The Parliament to control the mechanism that deals with the appointment of judges.
 - The other controversial measure is, empowering the Justice Minister to sack the heads of lower courts.





POLAND



- 1 It has tasted economic prosperity and political freedom in the post cold war era.
- 2 The country acceded in 2004 to the European Union.
- 3 Poland is one of the classic examples of integration with EU from socialism.
- 4 The institutional clampdown is causing concern in other European capitals.

Poland's robust civil society may be more effective in keeping its Government accountable.

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